

Dissertation workshop

LLM in Intellectual Property & Digital Economy

LLM in Technology Law & Regulation

LLM in International Competition Law & Policy





Timeline

Choose your topic

- Your topic needs to correspond to the subject area of your LLM programme
- There cannot be substantial overlap between your topic and an essay you have written for one of your LLM courses
- Your topic should concern law & regulation, but can include non-legal elements, e.g. culture, history, economics or politics
- Your dissertation should focus on the UK/EU law, but comparisons with other jurisdictions are permitted
- Avoid topics which are too broad. Be specific.
- Consider information and materials you have access to. Using information which is not publicly available requires prior ethics approval.

→ Remember that dissertation is a result of **your own independent work**. Supervisors provide guidance and advice but they are not the ones making decisions.

Choose your topic

- Decide on the area of law (sub-field)
- Decide on the topic
- Identify your research question

What is a research question?

It is a question your dissertation aims to answer. Your task is not to describe what the law is, but to provide an informed answer to your research question.

Examples

Area: Copyright law

Title: **Protecting Traditional Cultural Expressions: Using copyright law to detour cultural appropriation**

RQ: *This dissertation will analyse whether the current copyright system can be used to protect TCEs to stop cultural appropriation, and examine the legal issues involved in the process of cultural owners claiming to protect TCEs.*

Area: Digital regulation (Platform Regulation/AI regulation/Data Protection and Privacy/Consumer Protection Law)

Title: **From exposure to protection: assessing EU digital regulation against social media's impact on children**

RQ: *This dissertation will discuss how social media platforms have increasingly exposed children to online harms, and explore how EU regulators are addressing this issue by looking into and assessing the current EU digital framework.*

Area: Digital regulation (IP law, Platform regulation and Consumer Protection law)

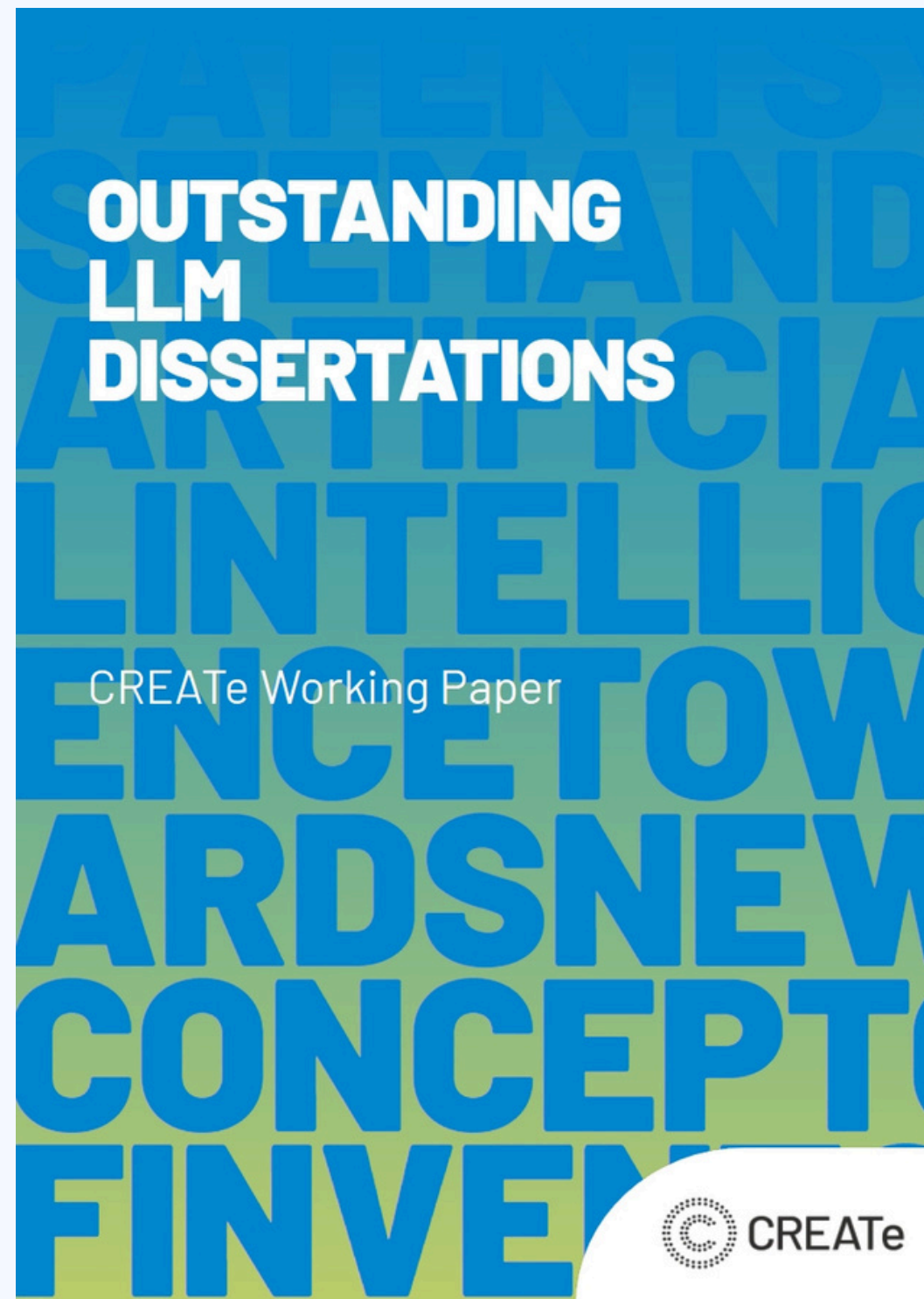
Title: **Creators as consumers? How does consumer protection law protect creators in the EU? (*What to fix*)**

RQ: *This dissertation will analyse whether creators and publishers monetising on social media qualify as 'consumers' under EU consumer protection laws. If so, what protections do these laws offer and what gaps exist? How could these gaps be addressed e.g., under the upcoming Digital Fairness Act?*

Area: Market regulation (Competition law, Consumer Protection law)

Title: **Market investigations as an instrument to serve consumers in digital markets: can the EU learn from the UK experience?**

RQ: *This dissertation will scrutinise the purported 'enforcement gap' associated with using traditional EU antitrust tools to detect and address consumer harms in digital markets. It considers whether this gap could be addressed by adopting a mechanism akin to the UK's market investigation tool.*



For good examples of how an LLM dissertation could look like go to the Outstanding LLM Dissertations website.

Every year CREATE publishes a selection of LLM dissertations. This year the initiative is open to all IP, Tech Law and Competition Law students.



Collaborative Dissertations

- **British Film Institute (BFI):** Film Heritage, AI and Copyright (*IP law*)
- **What to Fix: Social Media Monetisation** (*platform regulation, consumer protection law, IP law, contracts*)
- **Veterinary Specialist Association:** Transparency to empower consumers (*consumer protection law*)
- **Hellenic Competition Commission:** Retail price maintenance in various markets; **Competition law in the electricity and gas markets; Competition law in the banking sector** (e.g. interchange fees); **Terms and conditions of online platforms** (e.g. travel/hotel booking, price comparison websites); and **Bid rigging in public procurement** (*competition law*)
- **Fieldfisher China:** Retail price maintenance and price wars; Platform power; Tech and pharmaceuticals; Compliance with international instruments like the EU's GDPR, and China's **Personal Information Protection Law (PIPL)** and **Cybersecurity Law (CSL)** (...) (*competition law, privacy and data protection, IP law etc...*)

Formulating a research question

1. Think of your research topic in terms of one label

2. Add other words to clarify the context

3. Connect these in a sentence

4. Rework your sentence into a question

1. Privacy

2. Privacy, Breaches, User data, Facebook

3. This is a study on Facebook's privacy policy and how it protects user data against security breaches, and the way this impacts on user behaviour.

4. How does Facebook's privacy policy protect user data against security breaches and how does this impact on user behaviour?

Formulating a research question

1. Think of your research topic in terms of one label

2. Add other words to clarify the context

3. Connect these in a sentence

4. Rework your sentence into a question

1. Copyright

2. Remuneration, authors, art, resale

3. This dissertation discusses rights and remuneration of authors of paintings and sculptures in the context of resale of their art.

4. Does the copyright law safeguard authors' rights, including the right to remuneration, in the context of resale of their art?

Formulating a research question

1. Think of your research topic in terms of one label

2. Add other words to clarify the context

3. Connect these in a sentence

4. Rework your sentence into a question

1. Merger control

2. Merger control, growth, consolidation

3. This is a study of how merger control enforcement is adapting to economic growth goals, and the implications for market structures.

4. Do merger control laws offer sufficient safeguards against consolidation in light of the international growth agenda?

Formulating a research question

Now it's time for your ideas.

Use the worksheet provided. You have 10 minutes.

If you're not sure about the area of your dissertation, think about the LLM course you enjoyed the most and start there.

Q&A